

Thereupon the following resolution was duly offered, seconded and unanimously adopted:

RESOLUTION

1891-01
BE IT RESOLVED BY THE COUNCIL OF THE CITY OF VERNONIA, COLUMBIA COUNTY, STATE OF OREGON, that the following proposed amendments to the charter of said City be and the same hereby are proposed for submission to the legal voters of said City for their adoption or rejection at the special City election to be held on the 7th day of November, 1922, as in this resolution provided;

CHARTER AMENDMENTS SUBMITTED TO THE VOTERS BY THE COUNCIL

AN ACT

To amend an Act entitled "An Act to incorporate the City of Vernonia, in the County of Columbia, State of Oregon", filed in the office of the Secretary of State February 13th, 1891, and as amended by "An Act to amend Section 2 of an act entitled 'An Act to incorporate the City of Vernonia, in the County of Columbia, State of Oregon' filed in the office of the Secretary of State, February 18th 1891", approved by the Governor February the 15th 1901, and to amend all amendments thereto enacted by the legislative Assembly or by vote of the people.

BE IT ENACTED BY THE PEOPLE OF THE CITY OF VERNONIA

That an act entitled "An act to incorporated the City of Vernonia, in the County of Columbia, State of Oregon", filed in the office of the Secretary of State, February 18th, 1891, and as amended by "An act to amend Section 2 of an act entitled "An Act to incorporate the City of Vernonia, in the County of Columbia, State of Oregon", filed in the office of the Secretary of State February 18th, 1891, approved by the Governor February 15th, 1901, and as amended by all subsequent amendments thereto enacted by the Legislative Assembly or by vote of the people, be and the same is amended to read as follows:

CHAPTER 1

SECTION 1. The municipal corporation now existing and known as the City of Vernonia, the boundaries of which are hereinafter described, shall remain and continue and the inhabitants thereof are hereby constituted and declared to be a municipal corporation by the name and style of City of Vernonia and by such name shall have perpetual succession, sue and be sued, plead and be impleaded in all courts of justice, in all actions, suits or proceedings whatsoever; may purchase, hold and receive property, both real and personal, within said City for public buildings, public works and city improvements; may lease, sell and dispose of the same for the benefit of the City; may purchase, hold and receive property, both real and personal, beyond the limits of the city to be used for city parks or burial purposes, for the establishment and maintenance of a hospital for the reception of persons affected with contagious diseases or other diseases, for water works, power plants, workhouses or for houses of correction, and may Control, lease, sell, or dispose of the same for the benefit of the city. And it shall have and use a corporate seal and may alter and change the same or make a new one at pleasure.

Section 2. The corporate limits of said City of Vernonia shall be as follows:

Commencing at the NW corner of Section 4, Township 4 North, Range 4 West of the Willamette Meridian, thence East along the North line of said Section 4 to the quarter section corner of said North line of said Section, thence South along the center line of said Section 4 to the center of said Section; thence West along the East and West quarter section line to the property owned by School District No. 47, and occupied by the school house, thence South tracing the East line of said School property to the Southeast corner of said school property; thence North tracing the West line of said school property to the East and West quarter section in said Section 4 through the center of said Section 4; thence West along said East and West quarter section line of said Section 4 to the Northwest corner of the Northeast quarter of the Southwest quarter of said Section 4; thence South along the 8th Section line to the Southwest corner of the Northeast quarter of the Southwest quarter of said Section 4; thence West along the 8th Section line in said Section 4 and the 8th section line in Section 5, Township 4 North,

Range 4 West of the Willamette meridian to the Southwest corner of the Northeast quarter of the Southeast quarter of said Section 5, Township 4 North, Range West of the Willamette Meridian; thence North along said 8th section line to the Northwest corner of the Northeast quarter of the Northeast quarter of said Section 5; thence East along the North line of said Section 5 to the place of Beginning.

CHAPTER 2

Section 3. The power and authority given to the municipal corporation of the City of Vernonia by this act is vested in a Mayor and Council, and thier successors in office.

Section 4. The elective officers of said city shall be a Mayor, Treasurer, and four council men who shall be elected and hold office for a period of two years; provided that the successors to the officers whose terms of office expire in _____, shall be electe at the general election to be held on the first Tuesday after the first Monday in November, 1962.

Section 5. There shall be appointed by the Mayor with the approval of a majority vote of the Council of said City at the first regular meeting of the Council in January, a Marshall and Recorder who shall hold their offices until their successors are appointed and qualified.

Section 6. The Council may in its discription appoint a City Attorney and fix his compensation and term of office.

*Amended
1922*
Section 7. No person is eligible to any ^{elective} office in the municipal corporation, who, at the time of his election or appointment is not entitled to the privileges of an elector according to the laws of this State, and ho has not resided in the City of Vernonia for twelve months precdding such election or appointment, and no person who is not the owner of real estate within the corporate limits of the City shall be a member of the City Council.

Section 8. The Recorder, Treasurer and Marshall shall before entering upon the duties of their respective offices, each execute a bond to the City of Vernonia in such penal sums as the Council by ordinance may direct, which amount may at any time be increased by the Council, conditioned on the faithful performance of his duties as such officer and as ex-officio officer, which bond shall be approved by the Mayor before said officers shall enter upon the discharge of their duties. The Mayor shall be the custodian of the Recorder's bond. All the provisions of any law of this state relating to the official bonds of officers shall apply to such bonds, except as herein otherwise provided. Every officer, elective or appointive, of the City of Vernonia, before entering upon the duties of his office, shall take and file with the Recorder an oath to honestly and faithfully discharge the duties of his office and that he will support the laws and Constitution of the State of Oregon and of the United States to the best of his ability. All official bonds shall be undertakings of surety companies and shall be paid for out of the General fund of the City.

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Section 9. The Mayor and Councilmen shall receive no compensation whatever for their services as such officers. The Recorder, Treasurer and Marshall and other subordinate officers shall receive at stated times compensation to be fixed by ordinance.

Section 10. The Marshall of the City of Vernonia shall have all of the power and authority of a Sheriff within the limits of said city, and it shall be his duty in addition to the duties prescribed by him by the Council, to execute and return all processes issued and directed to him by the Recorder or by any other legal authority; he shall arrest upon complaint or otherwise, as a peace officer, all persons for a breach of the peace or a violation of the City ordinances or the laws of the state and bring them before the Recorder or other legal authority for trial or examination; he shall attend the Recorder's court and the meetings of the City Council; he shall be the keeper of the City jail and the City pound and shall be a conservator of the peace and shall have charge of all prisoners and vagrants and shall under the authority of the ordinances of the city require all prisoners to work upon the streets or other public works of the city. He shall have power, with the direction and sanction of the Mayor and Council, to appoint as many deputies as may from time to time be required.

officers in accordance with this act, and shall appoint three suitable persons who shall act as judges, two of whom shall act as clerks of said election, and shall supply them with poll books and such other stationery or other conveniences as shall be necessary to carry the provisions of this act into effect; said election to be held as nearly as may be in conformity with the election laws of this State. Said judges shall within two days after holding said election duly make returns to the board of trustees, who shall at once, in the presence of the public, canvass the same, declare the result and issue to the proper persons certificates of their election, and the persons so elected shall qualify and assume the duties of the offices to which they have been severally elected as hereinbefore provided for; *provided*, that the person receiving the highest number of votes cast for a town trustee shall be declared president of the board, and in case no one has a majority then the board of trustees shall decide by lot who shall be president of the board, as provided for in this act; *and provided further*, that until the first annual election in March, 1891, J. H. Oakes shall be president of the board of trustees as hereinbefore provided.

Section 25. At least ten days prior to the first Monday in March of each year the recorder of said town of Mitchell shall cause notices to be posted in three public places within the corporate limits of said town announcing that an election of city officers will be held at the usual place or places on the day hereinbefore specified, and said elections shall be conducted and the polls canvassed and certificates of election issued in all respects as provided in section 24 of this act.

Section 26. Inasmuch as it is necessary for the peace and security of the lives and property of the good people residing within the corporate limits of the said town of Mitchell to provide for speedier and more adequate protection than the general laws afford, this act shall take effect immediately after its approval by the Governor.

Filed in the office of the Secretary of State February 18, 1891.

AN ACT

To Incorporate the City of Vernonia, in the County of Columbia, State of Oregon.

Be it enacted by the Legislative Assembly of the State of Oregon:

Section 1. That the inhabitants of the city of Vernonia, Columbia county, Oregon, are hereby created a body corporate with perpetual succession, by the name of the city of Vernonia, and as

such shall have the right to sue and be sued, implead and be impleaded, defend and be defended in any of the courts of this State; to hold real and personal property, to sell, lease, use or otherwise dispose of the same for the common benefit; to borrow and loan money; to have and use a seal and to alter the same at pleasure.

Section 2. The corporate limits of said city of Vernonia shall be as follows: Commencing at the northwest corner of section four, township four north, of range four west, of the Willamette meridian, in the said county; thence east one-half mile; thence south one mile; thence west three-fourths of a mile; thence north one mile; thence east to the place of beginning.

Section 3. The officers of said corporation shall be a president of the council, four councilmen, a recorder, a marshal and a treasurer, who shall be actual residents and legal voters of the city, and no man who is not the owner of real estate within the corporate limits of the city shall be a member of the city council.

Section 4. Said officers shall be elected annually by the qualified voters of said city on the first Monday of April of each year, and shall assume the duties of their respective offices on the second Monday of April ensuing, and shall hold their offices for one year, or until their successors are elected and qualified.

Section 5. The president of the council shall have power to call meetings of the council, shall preside at their meetings, and when there is a tie in the council, shall vote. He shall sign all ordinances and all warrants on the treasurer or warrants for the collection of city taxes. He shall make a yearly report of the condition, financial and otherwise, of the city, and shall recommend such measures for the peace, health and prosperity of the city as he may deem expedient.

Section 6. The president and the councilmen shall perform such other duties as may be hereinafter prescribed, and before entering upon the duties of their office shall file with the recorder an oath to well and faithfully perform the duties required of them by this charter.

Section 7. The recorder shall have the jurisdiction of a justice of the peace in the corporate limits in civil and criminal proceedings, and his court shall be governed as far as applicable, by the general laws under which justice courts are conducted. He shall be *ex officio* clerk of the common council, and shall preside in the absence of the president, and shall keep a journal of the proceedings of the board of councilmen. He shall also be city assessor, and his duties as assessor and clerk shall be prescribed by the common council.

Section 8. The marshal shall execute all processes directed to

WARRANTY DEED

Joseph Hickman

Filed for record this 6th day of March

A. D. 1913, at 3 o'clock minutes A. M.

H. E. LaBare County Clerk

By A. F. Barnett Deputy

School District No. 47

Know all Men by These Presents,

That I, Joseph Hickman, an unmarried man

of County

of Columbia

State of Oregon,

in consideration of Eight Hundred \$800.00/100

Dollars,

to me paid by School District No. 47 in the City of Vernonia, County

of Columbia

State of Oregon, do hereby bargain and sell, and by these presents do hereby grant, bargain, sell and convey unto said School District No. 47,

all and singular the here and now, all the following bounded and described real property, situated in the County of Columbia and State of Oregon and the City of Vernonia To-wit:

Starting at the South West Corner of Block (13) in the East side addition to the City of Vernonia; Running South (60) feet, thence East 266 feet; To a stake marked B Place of beginning of School ground. Thence Running South 430 feet; Thence Running East 300 feet; Thence Running North 430 feet; Thence Running West 300 feet to stake marked B to Place of beginning.

together with all and singular the tenements, hereditaments and appurtenances thereto belonging or in anywise appertaining, and also all his estate, right, title and interest in and to the same, including dower and claim of dower.

TO HAVE AND TO HOLD, the above described and granted premises unto the said School District No. 47

to have and to hold, the above described and granted premises unto the said School District No. 47

grantor above named do hereby covenant to and with School District No. 47

the above named grantor his heirs and assigns that lawfully seized in fee simple of the above granted premises, that the above granted premises are free from all incumbrances,

and that he will and his heirs, executors and administrators shall warrant and forever defend the above granted premises, and every part and parcel thereof, against the lawful claims and demands of all persons whomsoever.

IN WITNESS WHEREOF, I, the grantor above named, hereunto set my hand and seal this

First day of March 1913

Signed, Sealed and Delivered in Presence of Us as Witnesses

H. E. LaBare

E. F. Barnett

Joseph Hickman

(Seal)

(Seal)

(Seal)

STATE OF OREGON,

County of Columbia

BE IT REMEMBERED, That on this First day of March

A. D. 1913, before me, the undersigned, a

Notary Public

in and for said

CITY OF VERNONIA

919 Bridge Street
Vernonia, Oregon 97064
429-5291
March 9, 1981

ATT. AF
RETURN ✓
YOUR FILE ✓

FILED MAR 11 1981 19
HENRY T. HUDSON
Assessor
By Deputy

Henry Hudson
County Assessor
County Courthouse
St. Helens, Oregon 97051

Dear Mr. Hudson:

Enclosed is the information you requested on the corporate limits of the city. This has been photographed from the original charter.

Sincerely yours,
THE CITY OF VERNONIA

Don Dunaway
Don Dunaway, City Recorder

CHAPTER 1

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SECTION 2. The corporate limits of said City of Vernonia shall be as follows:

Commencing at the NW corner of Section 4, Township 4 North, Range 4 West of the Willamette Meridian, thence East along the North line of said Section 4 to the quarter section corner of said North line of said Section, thence South along the center line of said Section 4 to the center of said Section; thence West along the East and West quarter section line to the property owned by School District No. 47, and occupied by the school house, thence South tracing the East line of said School property to the Southeast corner of said school property; thence North tracing the West line of said school property to the East and West quarter section in said Section 4 through the center of said Section 4; thence West along said East and West quarter section line of said Section 4 to the Northwest corner of the Northeast quarter of the

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Southwest quarter of said Section 4; thence South along the 8th Section line to the Southwest corner of the Northeast quarter of the Southwest quarter of said Section 4; thence West along the 8th Section line in said Section 4 and the 8th Section line in Section 5, Township 4 North, Range 4 West of the Willamette meridian to the Southwest corner of the Northeast quarter of the Southeast quarter of said Section 5, Township 4 North, Range West of the Willamette Meridian; thence North along said 8th Section line to the Northwest corner of the Northeast quarter of the Northeast quarter of said Section 5; thence East along the North line of said Section 5 to the place of Beginning.